



JUDGMENT FOR DISSOLUTION OF MARRIAGE/CIVIL UNION

(DIVORCE WITH CHILDREN)
IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____
County Where You Are Filing the Case

PETITIONER: _____
Who started the case. First, Middle, and Last Name

RESPONDENT: _____
Who the case was filed against. First, Middle, and Last Name

_____ **Case Number**



Bring this form to your court date. Be prepared to fill it out yourself. Ask the judge if they want you to fill it out or if they will fill it out themselves. The judge may also want this form before your court date.

A court hearing was held on the *Petition for Dissolution of Marriage/Civil Union (Divorce with Children)* filed by the Petitioner. The court heard the testimony of:

☐ Petitioner ☐ Respondent

All of the evidence and relevant parts of the Illinois Marriage and Dissolution of Marriage Act (750 ILCS 5/101 et seq) were considered. Paragraphs 1-9 contain the Court's findings of facts.



1. PRESENT IN COURT

A. The Petitioner is present:

☐ Yes ☐ No

B. The Petitioner is represented by a lawyer:

☐ Yes ☐ No

Lawyer's name _____
First, Middle, and Last Name

C. The Respondent is present:

☐ Yes ☐ No

D. The Respondent is represented by a lawyer:

☐ Yes ☐ No

Lawyer's name _____
First, Middle, and Last Name



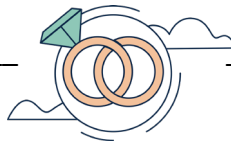
2. JURISDICTION

- A. This court has jurisdiction of the subject matter and parties.
- B. Respondent is currently on **active duty** as a member of the Armed Forces of the United States of America:
- ☐ Yes ☐ No ☐ Unknown
- C. The Court has jurisdiction under the Uniform Child-Custody Jurisdiction and Enforcement Act:
- ☐ Yes ☐ No



3. RESIDENCY

- A. The Petitioner has been living in Illinois at least 90 days immediately before the filing of the Petition or immediately before the time of this hearing:
- ☐ Yes ☐ No
- B. The Respondent has been living in Illinois at least 90 days immediately before the filing of the Petition or immediately before the time of this hearing:
- ☐ Yes ☐ No



4. MARRIAGE OR CIVIL UNION

The parties were married/united on: _____.

Month, Day, and Year

The parties were married/united in: _____.

County, State, and Country

5. GROUNDS FOR DISSOLUTION

Irreconcilable differences have caused the irretrievable breakdown of the marriage or civil union and efforts at reconciliation have failed or future attempts at reconciliation would be impracticable and not in the best interests of the family.



6. CHILDREN

A. The Petitioner is **pregnant**:

☐ Yes ☐ No

If yes, the unborn child is the Respondent's:

☐ Yes ☐ No

B. The Respondent is **pregnant**:

☐ Yes ☐ No

If yes, the unborn child is the Petitioner's:

☐ Yes ☐ No

C. The minor children (under the age of 18) born to or adopted together by the parties before or during the marriage/civil union are:

☐ None

Name of **child #1**: _____ Age _____
First, Middle, and Last Name

Name of **child #2**: _____ Age _____
First, Middle, and Last Name

Name of **child #3**: _____ Age _____
First, Middle, and Last Name

☐ There are **more than 3 children** and they are listed on the attached *Additional Children - Judgment* form.

D. The adult children (age 18 or older) born to or adopted together by the parties before or during the marriage/ civil union **who have a disability or are still in school** are:

☐ None

Name of **child #1**: _____ Age _____
First, Middle, and Last Name

Name of **child #2**: _____ Age _____
First, Middle, and Last Name

Name of **child #3**: _____ Age _____
First, Middle, and Last Name

☐ There are **more than 3 children age 18 or older who have a disability or are still in school** and they are listed on the attached *Additional Children Information - Judgment* form.

E. The children born to or adopted by **either** the Petitioner **or** the Respondent (but not both) during the marriage/civil union and who are not children of the marriage/civil union are:

☐ None

Name of **child #1**: _____ Age _____
First, Middle, and Last Name

Name of **child #2**: _____ Age _____
First, Middle, and Last Name

Name of **child #3**: _____ Age _____
First, Middle, and Last Name

☐ There are **more than 3 children** who were born to or adopted by either the Petitioner or the Respondent (but not both) before or during the marriage/civil union and they are listed on the attached *Additional Children Information - Judgment* form.

7. PARENTING PLAN

The following *Parenting Plan* is in the best interest of the minor children:

☐ Petitioner's ☐ Respondent's ☐ Both Parties (agreement) ☐ The Court's

**8. PROPERTY DIVISION**

- A. The parties own marital property that is listed and divided in the order portion below.
- B. Each party owns non-marital property that is listed and assigned in the order portion below.
- C. The parties have marital debts that are listed and divided in the order portion below.
- D. The parties have non-marital debts that are listed and assigned in the order portion below.

9. REAL ESTATE

- A. The parties have an interest in real estate, which is an asset of the marriage/civil union:

☐ Yes ☐ No

- B. The address of the real estate is: _____
Street, Apt. #, City, State, and ZIP Code

- C. A legal description of the real estate is attached to this *Judgment*:

☐ Yes ☐ No

**10. MAINTENANCE**

- A. This person is **entitled to** maintenance:

☐ Petitioner ☐ Respondent ☐ Neither

- B. Other: _____

11. AGREEMENT

Parties are in agreement with the terms of this *Judgment*:

☐ Yes ☐ No

IT IS ORDERED:**A. Divorce Granted**

The parties are divorced.

B. Parenting Plan

- ☐ A separate *Parenting Plan* has been entered.
- ☐ There is another order relating to the children in court case: # _____.
- Located in: _____.
- County, State*

C. Child Support

- ☐ An *Order for Support* shall be entered.
- ☐ Support shall continue as ordered in court case: # _____.
- Located in: _____.
- County, State*
- ☐ Child support is reserved (not ordered at this time).

D. Children as Dependents on State and Federal Tax Returns

1. Who has the right to claim children as dependents on state and federal tax returns:
 - a. For all tax years:

☐ Petitioner
 ☐ Respondent
 - b. For even-numbered tax years:

☐ Petitioner
 ☐ Respondent
 - c. For odd-numbered tax years:

☐ Petitioner
 ☐ Respondent
 - d. ☐ Each party will claim one-half of the children each tax year:

If odd number of children, this party will claim the additional child in odd-numbered years:

☐ Petitioner
 ☐ Respondent

 If odd number of children, this party will claim the additional child in even-numbered years:

☐ Petitioner
 ☐ Respondent
2. This Order does not address the right to claim the children as household residents for the purpose of applying for earned income credit.
3. If a party has a duty to pay child support for the minor children and is awarded the right to claim one or more of the minor children as dependents for tax purposes, that right may only be exercised if that party is current in their child support obligation by January 15 of the year following the relevant tax year.

E. Support for Adult Children (for education or children with disabilities):

1. ☐ Support is ordered as follows:

☐ Petitioner ☐ Respondent will pay:
2. ☐ Support for adult children is reserved (no support is ordered at this time).
3. ☐ No adult children.

F. Marital Debts & Liabilities

1. These debts will be paid by each person as follows:

Debt #1: _____ Amount Owed: \$ _____
Name of creditor To be paid by: ☐ Petitioner _____% ☐ Respondent _____%

Debt #2: _____ Amount Owed: \$ _____
Name of creditor To be paid by: ☐ Petitioner _____% ☐ Respondent _____%

Debt #3: _____ Amount Owed: \$ _____
Name of creditor To be paid by: ☐ Petitioner _____% ☐ Respondent _____%

Debt #4: _____ Amount Owed: \$ _____
Name of creditor To be paid by: ☐ Petitioner _____% ☐ Respondent _____%

Debt #5: _____ Amount Owed: \$ _____
Name of creditor To be paid by: ☐ Petitioner _____% ☐ Respondent _____%

☐ Additional debts are listed on the attached ***Additional Debts and Liabilities*** form.

2. Debts not included in the chart above shall be paid by the parties as follows:

☐ Each party will be responsible for 50% of each joint debt.

☐ Each party will pay all of the debts in their own name.

3. Parties shall indemnify and hold the other party harmless for the debts they are assigned.

G. Marital Property

1. Pension and Retirement Accounts

- a. Each party awarded the pension and retirement accounts in their own name:

☐ Yes ☐ No

- b. Petitioner is awarded a percentage of the marital/civil union portion of the following pension/retirement accounts of the Respondent's:

Account name: _____ ☐ Yes, _____% ☐ No

Account name: _____ ☐ Yes, _____% ☐ No

Account name: _____ ☐ Yes, _____% ☐ No

Qualified Domestic Relations Orders will be prepared by:

☐ Petitioner ☐ Respondent

- c. Respondent is awarded a percentage of the marital/civil union portion of the following pension/retirement accounts of the Petitioner's:

Account name: _____ ☐ Yes, _____% ☐ No

Account name: _____ ☐ Yes, _____% ☐ No

Account name: _____ ☐ Yes, _____% ☐ No

Qualified Domestic Relations Orders will be prepared by:

☐ Petitioner ☐ Respondent

- d. ☐ Other orders or additional pension/retirement accounts:

2. Real Estate

- ☐ a. The ☐ Petitioner ☐ Respondent is awarded the marital real estate and shall pay the other party \$_____ for their interest in the real estate.
- ☐ b. The marital real estate shall be sold.
The net proceeds of the sale (sale price minus costs of sale) shall be divided with:
Petitioner to receive: _____% Respondent to receive: _____%
- ☐ c. Until the marital real estate is sold, mortgage payments will be paid by:
Petitioner: _____% Respondent: _____%
- ☐ d. Until the marital real estate is sold, real estate taxes will be paid by:
Petitioner: _____% Respondent: _____%
- ☐ e. Until the marital real estate is sold, insurance will be paid by:
Petitioner: _____% Respondent: _____%
- ☐ f. Until the marital real estate is sold, cost of maintaining the property will be paid by:
Petitioner: _____% Respondent: _____%
- ☐ g. The ☐ Petitioner ☐ Respondent is entitled to claim mortgage payments for federal and state tax purposes.
- ☐ h. The ☐ Petitioner ☐ Respondent is entitled to claim property tax payments for federal and state tax purposes.
- ☐ i. The ☐ Petitioner ☐ Respondent will refinance the debt on the real estate to remove the other party from the obligation by: _____.
Month, Day, Year
- ☐ j. The ☐ Petitioner ☐ Respondent will sign a quitclaim deed transferring their interest to the other party by: _____.
Month, Day, Year
- ☐ Other orders:

3. Personal Property and Bank Accounts:

- ☐ Parties shall keep the property and bank accounts in their own name or possession.
- ☐ Personal property of the marriage/civil union will be divided as follows:
- a. _____ Property goes to: ☐ Petitioner ☐ Respondent
Specific description of Property or Account
- b. _____ Property goes to: ☐ Petitioner ☐ Respondent
Specific description of Property or Account
- c. _____ Property goes to: ☐ Petitioner ☐ Respondent
Specific description of Property or Account
- d. _____ Property goes to: ☐ Petitioner ☐ Respondent
Specific description of Property or Account
- e. _____ Property goes to: ☐ Petitioner ☐ Respondent
Specific description of Property or Account
- ☐ Attached is an **Additional Personal Property & Bank Accounts** form.

4. ☐ Any personal property exchange required by this order shall take place within 30 days of the date of this *Judgment*.
5. ☐ Other Orders (including pets):

H. Non-Marital Property

1. Petitioner is the owner of and assigned the following non-marital real estate, personal property, retirement accounts, or bank or other financial accounts:
- _____
- _____
2. Respondent is the owner of and assigned the following non-marital real estate, personal property, retirement accounts, or bank or other financial accounts:
- _____
- _____
3. A party holding the non-marital property of the other party shall deliver it to the other party within 30 days of the date of this *Judgment*.

I. Non-Marital Debt

1. Petitioner is assigned their non-marital debt, which includes:
- _____
2. Respondent is assigned their non-marital debt, which includes:
- _____

J. Maintenance

- ☐ The parties are forever barred from claiming maintenance from each other.
- ☐ Maintenance is awarded to: ☐ Petitioner ☐ Respondent
- Amount of maintenance awarded : _____ per _____
- Based on:
- ☐ Guidelines
- ☐ Deviation from guidelines: Reason for deviation: _____
- Maintenance is awarded for: ☐ _____ months ☐ indefinitely.
- An *Order for Support* shall be entered:
- ☐ Yes ☐ No
- ☐ Other orders:

K. Former Name

☐ Petitioner is permitted to use their former name of:

First Middle Last Name

☐ Respondent is permitted to use their former name of:

First Middle Last Name

L. Other Relief

☐ None

☐ Yes: _____

M. Jurisdiction is reserved over the parties and the subject matter for purposes of enforcing this Judgment.

ENTERED:

Judge

Date (Month, Day, Year)